

2ND SCH.
—cont.

and adopt such method of slaughter, and otherwise take such precautions as may be requisite to secure the infliction of as little pain and suffering as possible.

4. A person shall not so far as is practicable without structural alteration to premises existing at the passing of this Act, slaughter, or cause or suffer to be slaughtered, any animal in the view of another animal.

5. A person shall not use any instrument for slaughtering or stunning any animal unless his ability and physical condition qualify him to use it without inflicting unnecessary pain on the animal, nor shall he use a mechanically-operated instrument in such manner or in such circumstances or in such a state of want of repair as to incur the risk of causing unnecessary suffering to an animal.

6. An occupier of a slaughter-house or knacker's yard shall not (so far as it is reasonably practicable to avoid it) cause or allow any blood or other refuse to flow from such slaughter-house or knacker's yard so as to be within the sight or within the smell of any animal in the slaughter-house or knacker's yard, and he shall not cause or allow any such blood or other refuse to be deposited in the waiting pens or lairs so far as it is reasonably practicable to avoid it.

CHAPTER 40.

An Act to amend the law with respect to Customs
in the Isle of Man. [28th July 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Increased
duty on
matches.

1.—(1) As from the ninth day of June, nineteen hundred and thirty-three, in lieu of the customs duties theretofore payable on matches, there shall, until the first day of August, nineteen hundred and thirty-four, be payable on matches removed or imported into the Isle of Man the duties specified in the First Schedule to this Act.

(2) For the purpose of the duties under this section, a match which has more than one point of ignition shall be reckoned as so many matches as there are points of ignition.

(3) The Commissioners may make regulations with respect to the collection of the duties under this section, and may for that purpose apply, with the necessary modifications, to matches removed or imported into the Isle of Man, any enactments applicable to duties on matches imported into the United Kingdom.

2.—(1) As from the ninth day of June, nineteen hundred and thirty-three, there shall be payable on the removal or importation into the Isle of Man of any article, being a mechanical lighter or a component part of a mechanical lighter other than a flint, in lieu of the duty of customs theretofore payable, the following duties of customs, that is to say:—

Increased
duties on
mechanical
lighters.

Articles manufactured in the United Kingdom					1s. 0d.
Other articles					1s. 6d.

(2) The Commissioners may, subject to such conditions (if any) as they think fit to impose, exempt from the duties under this section any mechanical lighters which are shown to their satisfaction to be intended to be used as parts of miners' lamps, and the component parts of any such mechanical lighters.

(3) In this section the expression "mechanical lighter" means any mechanical or chemical contrivance which is portable and is intended for producing a spark or flame, whether by itself or when brought into contact with gas.

(4) The Commissioners may make regulations with respect to the collection of the duties under this section, and may for that purpose apply, with the necessary modifications, to mechanical lighters removed or imported into the Isle of Man any enactments applicable to duties on mechanical lighters imported into the United Kingdom.

3.—(1) As from the ninth day of June, nineteen hundred and thirty-three, the duty of customs imposed by section two of the Act of 1929 on sweets removed or imported into the Isle of Man shall, in the case of sparkling sweets, be payable at the rate of seven shillings per gallon instead of at the rate of one shilling per gallon.

Amendment
and continu-
ation of
duty on
sweets.
20 & 21
Geo. 5. c. 1.

(2) The duty of customs imposed on sweets by the said section two, as amended by the foregoing provisions of this section, shall continue to be payable as from the first day of August, nineteen hundred and thirty-three,

until the first day of August, nineteen hundred and thirty-four.

Continua-
tion of
duties on
silk with
power to
vary duties.
15 & 16
Geo. 5. c. 56.
16 & 17
Geo. 5. c. 27.
22 & 23
Geo. 5. c. 41.

4.—(1) Subject to the provisions of this section, the duties of customs imposed by section seven of, and the Schedule to, the Act of 1925, section eight of the Act of 1926, and section nine of the second Act of 1932 (hereafter in this section referred to as "the silk duties enactments") on silk and artificial silk and articles made wholly or in part of silk or artificial silk shall continue to be payable as from the first day of August, nineteen hundred and thirty-three, until the first day of August, nineteen hundred and thirty-four.

23 & 24
Geo. 5. c. 19.

(2) If an order is made by the Treasury under subsection (1) of section nine of the Finance Act, 1933, repealing or reducing the rate of any customs duty charged under the enactments referred to in that subsection or amending or repealing any of the provisions of those enactments, the Governor may by order repeal or reduce the rate of the corresponding duty payable under the silk duties enactments, or amend or repeal the corresponding provisions of those enactments, and as from the date on which any order so made comes into operation, the silk duties enactments shall have effect subject to the provisions of the order.

(3) The Governor may, from time to time, by order direct that, on the removal or importation into the Isle of Man of goods of such classes and descriptions as are specified in any order for the time being in force made by the Treasury under subsection (2) of section nine of the Finance Act, 1933, there shall be payable a new duty of customs at a rate equivalent to the rate of the duty on the like goods specified in the Treasury order, and any order made under this subsection may direct that any of the provisions contained in the silk duties enactments shall apply to the new duty imposed by the order subject to such modifications (if any) as may be specified in the order.

(4) An order made under the last foregoing subsection may direct that any new duty payable thereunder shall be payable—

(a) as from such date as may be specified in the order, not being earlier than the date of the order or the date from which the corresponding duty is payable under the Treasury order; and

- (b) for the same period or periods as are specified in the Treasury order in relation to the corresponding duty or, if no period is so specified, without limitation of period.

(5) Any new duty payable by virtue of an order made under subsection (3) of this section shall, for all purposes, be deemed to be payable under this section.

(6) Where an order made by the Treasury under subsection (1) or subsection (2) of the said section nine is varied or revoked, any corresponding order made by the Governor under this section may be varied or revoked accordingly by a subsequent order of the Governor.

(7) In the case of goods being Empire products, a new duty payable under subsection (3) of this section shall be payable at the preferential rate of five-sixths of the full rate.

5.—(1) Subject to the provisions of this section, the duties of customs imposed by section six of the Act of 1925 on the removal or importation into the Isle of Man of—

- (a) musical instruments, including gramophones, pianolas and other similar instruments;
- (b) accessories and component parts of musical instruments and records and other means of reproducing music;
- (c) clocks, watches and component parts of clocks and watches;

Continuation and reduction of duties on musical instruments, clocks, &c.

shall continue to be payable as from the first day of August, nineteen hundred and thirty-three, until the first day of August, nineteen hundred and thirty-four.

(2) As from the ninth day of June, nineteen hundred and thirty-three, the duties of customs payable under the said section six on articles of the descriptions specified in the first column of the Second Schedule to this Act, shall, instead of being an amount equal to thirty-three and one-third per cent. of the value of the article, be an amount equal to the percentage of the value of the article specified in relation thereto in the second column of the said Schedule:

Provided that, if an order is made by the Treasury under subsection (2) of section thirteen of the Finance Act, 1933, directing as respects articles of all or any of the descriptions aforesaid that the duties of customs charged

15 & 16

Geo. 5. c. 36.

under section three of the Finance Act, 1925, shall again be an amount equal to thirty-three and one-third per cent. of the value of the articles, either in the case of articles wheresoever manufactured or in the case of articles manufactured elsewhere than in countries to which the order is expressed to apply, the Governor may by order give corresponding directions, as respects the duties payable under section six of the Act of 1925, to take effect as from such date as may be specified in his order (not being earlier than the date of his order or the date on which the Treasury order takes effect), and as from that date this subsection shall cease to have effect or have effect subject to the provisions of the Governor's order, as the case may be.

(3) For the purpose of an order made under this section which is expressed to apply to any particular countries, the Governor may make regulations prescribing, either generally or in relation to articles of any particular description, the conditions which must be fulfilled in order to prove that articles have been manufactured in any of those countries, or partly in one and partly in another of those countries, and the Commissioners may in any case require a person removing or importing any such article into the Isle of Man to furnish, in such form as they may prescribe, proof that the conditions so prescribed by the Governor have been fulfilled, and if such proof is not furnished to the satisfaction of the Commissioners, the articles shall be deemed not to be articles so manufactured.

(4) Where an order made by the Treasury under the said section thirteen is varied as respects the countries to which it applies, any corresponding order made by the Governor under this section may be varied accordingly by a subsequent order of the Governor.

(5) Any order made by the Governor under this section shall (if it has not previously ceased to have effect under the provisions of this Act) cease to have effect on the expiration of a period of twenty-eight days from the date on which Tynwald next sits after the making of the order unless at some time before the expiration of that period it has been approved by resolution passed by Tynwald, but without prejudice to anything previously done thereunder or to the making of a new order.

(6) In the case of articles of any of the descriptions aforesaid (other than mouth organs) as respects which

subsection (2) of this section for the time being has effect, being articles shown to the satisfaction of the Commissioners to have been consigned from, and produced or manufactured in, the British Empire, subsection (7) of section six of the Act of 1925 shall have effect with the substitution for the preferential rate therein referred to of a preferential rate representing the full rate of duty chargeable by virtue of the said subsection (2) reduced by an amount representing eleven and one-ninth per cent. of the value of the articles.

(7) Whilst subsection (2) of this section has effect as respects mouth organs, no duty shall be payable under the said section six on articles of that description shown to the satisfaction of the Commissioners as aforesaid.

6. The duties of customs imposed on goods removed or imported into the Isle of Man, being goods of the descriptions set out in the first column of the following table, by the respective enactments set out in the second column of that table shall continue to be payable as from the first day of August, nineteen hundred and thirty-three until the first day of August, nineteen hundred and thirty-four.

Continuation of certain annual duties.

TABLE.

Description of Goods.	Enactment imposing Duty.
Ale and beer - - - -	Section 8 of the second Act of 1932.
Cinematograph films - - -	Section 6 of the Act of 1925, as amended by section 12 of the Act of 1927 and section 14 of the Act of 1928. 17 & 18 Geo. 5. c. 20.
Cocoa - - - - -	Section 4 of the Act of 1924. 18 & 19 Geo. 5. c. 38.
Hops and extracts, essences and other similar preparations (other than hop oil) made from hops.	Section 5 of the Act of 1925. 14 & 15 Geo. 5. c. 24.
Hop oil - - - - -	Section 3 of the Act of 1929.
Motor cars, including motor bicycles and motor tricycles, and their accessories and component parts.-	Section 6 of the Act of 1925, as amended by section 6 of the Act of 1926 and section 11 of the Act of 1927.
Spirits - - - - -	Section 2 of the Act of 1930. 20 & 21 Geo. 5. c. 42.
Tea - - - - -	Section 7 of the second Act of 1932.
Tobacco - - - - -	Section 19 of the first Act of 1932. 22 & 23 Geo. 5. c. 16.

Duties on
coffee and
chicory.

7.—(1) As from the twenty-third day of November, nineteen hundred and thirty-two, there shall be payable on the removal or importation into the Isle of Man of coffee or chicory, in lieu of the duties theretofore payable, duties of customs at the following rates, that is to say:—

	s.	d.
Coffee (not kiln-dried, roasted or ground) per cwt.	14	0
Coffee (kiln-dried, roasted or ground) - per lb.	0	2
Chicory (roasted or ground) - - per lb.	0	2
Chicory (raw or kiln-dried) - - - per cwt.	13	3

(2) In the case of coffee not kiln-dried, roasted or ground, being an Empire product, the duty aforesaid shall, subject as hereafter provided, be charged at a preferential rate representing the full rate of duty reduced by nine and fourpence the hundredweight, and in the case of other coffee and chicory being an Empire product, the duties aforesaid shall be charged at the preferential rates provided by section five of the Act of 1919:

9 & 10
Geo. 5. c. 74.

22 & 23
Geo. 5. c. 53.

Provided that if by virtue of proviso (a) or proviso (b) to subsection (2) of section four of the Ottawa Agreements Act, 1932, the preferential rate chargeable under that subsection on coffee (not kiln-dried, roasted or ground) is increased, either generally or as respects coffee produced or manufactured in any particular country, the Governor may from time to time make such orders as may be necessary to provide that this subsection has the same effect as respects coffee removed or imported into the Isle of Man as the said subsection (2) has for the time being as respects coffee imported into the United Kingdom.

Duties on
wines.

8.—(1) As from the twenty-third day of November, nineteen hundred and thirty-two,—

- (a) the duty of customs imposed by section one of the Act of 1927 on wine not being an Empire product and not exceeding twenty-five degrees of proof spirit shall be increased from three shillings per gallon to four shillings per gallon; and
- (b) the duty of customs imposed by the said section on wine not exceeding twenty-seven degrees of proof spirit, being an Empire product, shall be payable at a preferential rate representing the

full rate of duty for the time being chargeable on wine not exceeding twenty-five degrees of proof spirit and not being an Empire product, reduced by two shillings per gallon :

Provided that if by virtue of proviso (i) or proviso (ii) to section three of the Ottawa Agreements Act, 1932, the preferential rate chargeable under that section on wine not exceeding twenty-seven degrees of proof spirit is increased, either generally or as respects wine produced or manufactured in any particular country, the Governor may from time to time make such orders as may be necessary to provide that this subsection has the same effect as respects wine imported or removed into the Isle of Man as the said section three has for the time being as respects wine imported into the United Kingdom.

(2) Subject to the amendments made by the foregoing provisions of this section, the duties of customs imposed by section one of the Act of 1927 on wines removed or imported into the Isle of Man shall continue to be payable as from the first day of August, nineteen hundred and thirty-three, until the first day of August, nineteen hundred and thirty-four.

9.—(1) There shall be payable on the removal or importation into the Isle of Man of goods of the classes and descriptions specified in the first column of Parts I, II, III and IV of the Third Schedule to this Act the duties of customs respectively specified in the second column of those Parts of that Schedule; subject to and in accordance with the provisions of Part V of that Schedule.

Charge of
customs
duties in
pursuance
of Ottawa
agreements.

(2) If the duty chargeable on any class or description of goods under section one of the Ottawa Agreements Act, 1932, is repealed or reduced, or reimposed or increased, by an order made under subsection (2) or subsection (3) of that section, the Governor may by order repeal or reduce, or reimpose or increase, the duty payable on that class or description of goods under this section accordingly.

(3) Subject to the provisions as to exemption from the general ad valorem duty contained in paragraph (a) of subsection (2) of section one of the first Act of 1932 and to the provisions of the next following subsection, the duties of customs payable on any goods under this

section shall be payable in addition to any other duties of customs payable thereon or on any of the components thereof.

(4) While any goods are chargeable with duty under this section, any order in force under section two of the second Act of 1932 at the date when those goods become so chargeable shall, if and so far as it imposes an additional duty on those goods, cease to have effect, but nothing in this subsection shall be taken to affect the power of making orders under the said section two as respects goods chargeable with duty under this section and in relation to any order so made the reference in subsection (2) of that section to the general ad valorem duty shall be construed as a reference to the duty payable under this section.

Provisions
as to
Imperial
preference.

10.—(1) Neither the duties chargeable under the last foregoing section of this Act, nor the general ad valorem duty, nor, subject as hereinafter provided, any additional duty shall be charged in the case of goods which are shown to the satisfaction of the Commissioners to have been consigned from any part of the British Empire, and grown, produced or manufactured in any country the Government of which is a party to one of the agreements set out in the First Schedule to the Ottawa Agreements Act, 1932, for the time being in force under that Act:

22 & 23
Geo. 5. c. 8.

Provided that if at any time an order is made by the Treasury under the proviso to subsection (1) of section two of the Ottawa Agreements Act, 1932, directing that an additional duty chargeable under the Import Duties Act, 1932, shall be charged on any goods which by virtue of that section would otherwise be exempt from that duty on their importation into the United Kingdom, the Governor may by order direct that the corresponding duty (if any) chargeable under section two of the second Act of 1932 shall be charged on the like goods on their importation or removal into the Isle of Man.

Where an order made by the Treasury as aforesaid is varied or revoked, any corresponding order made by the Governor under this section may be varied or revoked accordingly by a subsequent order of the Governor.

(2) For the purpose of the last foregoing subsection, any territory in respect of which a mandate of the League of Nations is being exercised by, or which is administered under the authority of, the Government of any country shall be treated as if it were a part of that country.

(3) In the case of goods which are shown to the satisfaction of the Commissioners to have been consigned from any part of the British Empire and grown, produced or manufactured in the Irish Free State, no duty shall be payable either under the last foregoing section of this Act or under any order made under section two of the second Act of 1932, being an order corresponding to a Treasury Order made by virtue of paragraph (a) of subsection (5) of section one of the Ottawa Agreements Act, 1932, until the date on which the duties chargeable under section one of the Ottawa Agreements Act, 1932, become chargeable on goods shown as aforesaid.

(4) The duties chargeable under the last foregoing section of this Act shall not be charged in the case of goods which are shown to the satisfaction of the Commissioners to have been consigned from any part of the British Empire and grown, produced or manufactured in any part of the British Empire to which section two of the first Act of 1932 does not apply.

(5) During the period of three years from the fifteenth day of November, nineteen hundred and thirty-two, or such further period as may be prescribed, any copper produced in any part of the British Empire but refined outside the British Empire, being copper to which this subsection applies, shall, subject to proof being given in the prescribed manner that it has been so produced and that it has been consigned from the country in which it was refined, be treated for the purposes of this section as if it had been consigned from a part of the British Empire.

This subsection applies to any kind of copper to which subsection (5) of section two of the Ottawa Agreements Act, 1932, applies, and the expression "prescribed" in this subsection means prescribed by regulations made under that subsection.

(6) Goods shown to the satisfaction of the Commissioners to have been consigned from the port of Beira in Portuguese East Africa and shown as aforesaid, by

means of a certificate signed by a customs officer in the service of the Government of Southern or Northern Rhodesia or of Nyasaland, to have been grown, produced or manufactured in Southern or Northern Rhodesia or Nyasaland, as the case may be, shall be treated for the purposes of this section and of section three of the first Act of 1932 as if they had been consigned from a part of the British Empire.

(7) The foregoing provisions of this section shall be deemed to have had effect, in relation to the general ad valorem duty and any additional duties, as from the fifteenth day of November, nineteen hundred and thirty-two, and in relation to the duties chargeable under the last foregoing section of this Act, as from the twenty-third day of November, nineteen hundred and thirty-two.

(8) The provisions of the Fifth Schedule to the Finance Act, 1933, as set out with modifications in the Fourth Schedule to this Act shall have effect for the purposes of this section and Part I of the first Act of 1932 and Part I of the second Act of 1932.

(9) The following provisions of the first Act of 1932 shall cease to have effect, namely, subsection (4) of section two, section four and the Second Schedule.

Amend-
ments as to
application
of 9 & 10
Geo. 5. c. 32,
s. 8.

11. Subsection (1) of section eight of the Finance Act, 1919 (which relates to preferences in the case of certain Empire products) shall have effect in its application by virtue of any enactment to goods removed or imported into the Isle of Man, subject to the following further modifications, that is to say:—

(a) for the definition of the expression “the British Empire” (including the proviso thereto) there shall be substituted the definition of that expression contained in section eleven of the first Act of 1932;

(b) for the words “is the result of labour within the British Empire” there shall be substituted the words “is derived from expenditure of a kind so prescribed which has been incurred in the British Empire or the Isle of Man in respect of materials grown or produced or work done in the British Empire or the Isle of Man.”

12.—(1) Subject to the provisions of this section, the Governor may by order direct in relation to any class or description of goods specified in an order for the time being in force made by the Treasury under section fourteen of the Finance Act, 1933, that in the case either—

Power to
repeal or
reduce
duties under
Part I of
22 & 23
Geo. 5. c. 16.

(a) of goods of that class or description wheresoever grown, produced or manufactured; or

(b) of goods of that class or description grown, produced or manufactured in any countries to which the order is expressed to apply or manufactured partly in one and partly in another of any such countries;

that the general ad valorem duty or any additional duty or both those duties shall be payable at the reduced rate specified in the Treasury order, or, if the Treasury order so provides, shall not be payable:

Provided that no order made under this section shall be expressed to apply to any particular countries unless the Treasury order is expressed to apply to those countries.

(2) Where an order made by the Treasury as aforesaid is varied or revoked, any corresponding order made by the Governor under this section may be varied or revoked accordingly by a subsequent order of the Governor.

(3) The provisions of subsection (3) of section five of this Act shall have effect for the purpose of any order made under this section which is expressed to apply to any particular countries as it has effect for the purpose of any such order made under that section.

(4) Section three of the second Act of 1932 shall cease to have effect.

13.—(1) If an order is made by the Treasury under section sixteen of the Finance Act, 1933, directing that a duty of customs chargeable by reference to weight or other measure of quantity shall be charged on the importation into the United Kingdom of goods of the classes and descriptions specified in the order in lieu of the general ad valorem duty chargeable under Part I of the Import Duties Act, 1932, the Governor may by order direct that the like duty of customs shall be payable under this section on the removal or importation into the

Substitution
of specific
duty for the
general ad
valorem
duty.

Isle of Man of goods of the like classes and descriptions in lieu of the general ad valorem duty chargeable under Part I of the first Act of 1932 and references in any enactments relating to customs in the Isle of Man to the general ad valorem duty or the duty payable under Part I of the first Act of 1932, shall, unless the context otherwise requires, be deemed to include, in relation to such goods, a reference to the duty payable under this section.

(2) Where an order made by the Treasury as aforesaid is varied or revoked, any corresponding order made by the Governor under this section may be varied or revoked accordingly by a subsequent order of the Governor.

(3) Section nine of the first Act of 1932 shall cease to have effect.

Amend-
ments as to
additional
duties.

14.—(1) The power conferred on the Governor by section two of the second Act of 1932 to impose by order such additional duties of customs as are specified in an order made by the Treasury under section three of the Import Duties Act, 1932, shall include power, in a case where a duty specified in a Treasury order is expressed by reference to enactments which do not apply to the Isle of Man, to impose in lieu of the duty specified in the Treasury order an additional duty at a rate (whether expressed by reference to enactments which apply to the Isle of Man or otherwise) which is equivalent to the rate of the duty specified in the Treasury order, and the Governor may accordingly amend any order which is in force under the said section two at the commencement of this Act.

(2) Where, in any order made by the Governor (whether before or after the commencement of this Act) under section two of the second Act of 1932, the rate of an additional duty charged on goods of any class or description is stated to be such rate as will, with the general ad valorem duty, amount to a rate specified in the order as being chargeable by reference to weight or any other measure of quantity, then, if duty is paid in respect of any goods of that class or description at the rate so specified, both the general ad valorem duty and the additional duty shall be deemed to have been paid in respect of those goods, notwithstanding that the amount of the duty paid is equivalent to less than ten per cent. of the value of the goods.

15. If and when an order made by the Treasury under any provision of the Ottawa Agreements Act, 1932, or of the Finance Act, 1933, ceases to have effect under section nineteen of the Import Duties Act, 1932, as applied for the purpose of that provision, any corresponding order made by the Governor under this Act shall, if it has not previously ceased to have effect under the provisions of this Act, cease to have effect accordingly, but without prejudice to anything previously done thereunder or to the making of a new order.

Effect of
order
ceasing to
have effect
under s. 19
of 22 & 23
Geo. 5. c. 8.

16.—(1) Subject to such conditions as the Commissioners may prescribe for the protection of the revenue, where it is shown to the satisfaction of the Commissioners—

Repayment
of customs
duty where
goods re-
turned in
certain
cases.

- (a) that goods were imported into the Isle of Man in pursuance of a contract of sale and that the description, quality, state or condition of the goods was not in accordance with the contract or that the goods were damaged in transit; and
- (b) that the person importing the goods, with the consent of the seller, returned the goods unused to the seller and for that purpose entered the goods before shipment;

the person importing the goods shall be entitled to obtain from the Commissioners repayment of any duty of customs paid on the importation of the goods into the Isle of Man.

(2) Nothing in this section shall apply to goods imported on approval or “on sale or return” or other similar terms or to goods brought into the Isle of Man from the United Kingdom.

17. No customs duties shall be charged on the removal or importation into the Isle of Man of articles which are shown to the satisfaction of the Commissioners to have been awarded abroad to any person for distinction in art, literature, science or sport, or for public service, or otherwise as a record of meritorious achievement or conduct, and to be removed or imported by or on behalf of that person.

Exemption
from cus-
toms duties
of prizes,
&c., awarded
abroad.

18. Sections seven and eight of the first Act of 1932 (which make provision for the valuation of imported goods for the purpose of Part I of that Act) shall have effect for the purpose of any other enactment relating

Valuation
of goods for
purpose of
all ad va-
lorem duties.

to customs in the Isle of Man whereunder a duty of customs is chargeable on any goods by reference to their value as they have effect for the purposes of that Part of that Act.

Duties on certain Irish Free State goods.

19.—(1) On the importation into the Isle of Man from the Irish Free State of articles of the classes and descriptions specified in the first column of Part I of the Fifth Schedule to this Act, and on the bringing into the Isle of Man from any country of any articles of the said classes and descriptions exported to that country from the Irish Free State, the duties of customs respectively specified in the second column of Part I of the said Schedule shall be payable for the periods respectively specified in the third column of the said Schedule, subject to the provisions of Part II of the said Schedule :

Provided that nothing in this section shall apply to any articles imported or brought as aforesaid and shown to the satisfaction of the Commissioners to have been imported into the Irish Free State in the same condition as that in which they were exported therefrom.

22 & 23
Geo. 5. c. 40.

(2) The Commissioners may make such regulations as may be necessary for preventing the evasion of duty payable under this section in the case of articles brought into the Isle of Man from a country other than the Irish Free State, or otherwise for carrying this section into effect, and for that purpose may apply with any necessary modifications any regulations made under subsection (4) of section one of the Irish Free State (Special Duties) Act, 1932.

Repeal of emergency duties on horticultural products.

20.—(1) The duties imposed by section thirteen of the first Act of 1932 as amended by section twelve of the second Act of 1932 (being duties on certain horticultural products) shall cease to be payable, and accordingly Part II of the first Act of 1932 and the said section twelve shall cease to have effect.

(2) This section shall be deemed to have had effect as from the thirtieth day of August, nineteen hundred and thirty-two.

Short title, interpretation and repeals.

21.—(1) This Act may be cited as the Isle of Man (Customs) Act, 1933.

(2) In this Act, unless the context otherwise requires—

(a) the expression “ Empire product ” has the same meaning as in section five of the Act of 1919 ;

(b) the expression "British Empire" has the meaning assigned to it by section eleven of the first Act of 1932;

(c) the expression "additional duty" has the same meaning as in the second Act of 1932.

(3) The enactments set out in the Sixth Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

SCHEDULES.

FIRST SCHEDULE.

CUSTOMS DUTIES ON MATCHES.

Section 1.

	s.	d.
Containers in which there are not more than ten matches—		
For every 1,000 such containers	6	8
Containers in which there are more than 10 matches, but not more than 20 matches—		
For every 1,000 such containers	13	4
Containers in which there are more than 20 matches, but not more than 50 matches—		
For every 144 such containers	4	9
In respect of every additional 25 matches, or part of 25 matches, over 50 in a container—		
For every 144 such containers, an additional duty of	2	5
And so in proportion for any less number of containers.		

SECOND SCHEDULE.

CUSTOMS DUTIES ON CERTAIN MUSICAL INSTRUMENTS, CLOCKS, &c. Section 5.

Description of Goods.	Rate of duty.
Pianos, non-automatic; and component parts and accessories thereof	20 per cent.
Piccolos, flutes, clarinets, flageolets, bassoons and cornets; and component parts and accessories thereof	20 per cent.

2ND SCH.
—cont.

Description of Goods.	Rate of duty.
Stringed musical instruments; and component parts and accessories thereof - - - -	20 per cent.
Gramophones without electrical amplification, of a value not exceeding 10s. each - - - -	15 per cent.
Gramophones without electrical amplification, of a value exceeding 10s. each - - - -	20 per cent.
Concertinas (including accordions) of a value not exceeding 35s. each - - - -	15 per cent.
Concertinas (including accordions) of a value exceeding 35s. each - - - -	20 per cent.
Mouth organs - - - -	10 per cent.
Clocks, alarm (other than electric clocks) of a value not exceeding 30s. each - - - -	20 per cent.
Clocks (other than electric or alarm clocks) of a value not exceeding 30s. each - - - -	25 per cent.
Clock movements complete (other than movements of electric clocks), of a value not exceeding 15s. each - - - -	25 per cent.

THIRD SCHEDULE.

Section 9. PROVISIONS AS TO DUTIES IMPOSED IN PURSUANCE OF OTTAWA AGREEMENTS.

PART I.

DUTIES PAYABLE AS FROM THE TWENTY-THIRD DAY OF NOVEMBER, NINETEEN HUNDRED AND THIRTY-TWO.

Class or description of Goods.	Rate of duty.	Period during which duty charged.
Wheat in grain - - -	2s. per qtr. of 480 lbs.	—
Maize, flat, white - - -	10 per cent.	—
Butter - - - -	15s. per cwt.	—
Cheese - - - -	15 per cent.	—
Eggs in shell :—		
(a) not exceeding 14 lbs. in weight per great hundred.	1s. per great hundred.	—
(b) over 14 lbs. but not exceeding 17 lbs. in weight per great hundred.	1s. 6d. per great hundred.	—
(c) over 17 lbs. in weight per great hundred.	1s. 9d. per great hundred.	—

Class or description of Goods,	Rate of duty.	Period during which duty charged.	3RD SCH. —cont.
Condensed Milk, whole :—			
Not sweetened - - -	6s. per cwt. -	—	
Sweetened, or slightly sweetened.	5s. per cwt. -	—	
Milk Powder and other preserved milk excluding condensed milk :—			
Not sweetened - -	6s. per cwt. -	—	
Fresh or raw fruit :—			
Apples - - - -	4s. 6d. per cwt.	—	
Pears - - - -	4s. 6d. per cwt.	—	
Bananas - - - -	2s. 6d. per cwt.	—	
Oranges - - - -	3s. 6d. per cwt.	1st April to 30th November.	
Grapefruit - - - -	5s. per cwt. -	—	
Grapes other than hothouse -	1½d. per lb. -	1st February to 30th June.	
Peaches and Nectarines -	14s. per cwt. -	1st December to 31st March.	
Plums - - - -	9s. 4d. per cwt.	1st December to 31st March.	
Preserved or dried fruits :—			
Apples preserved in syrup -	3s. 6d. per cwt.	—	
Figs and fig cake, plums (commonly called french plums and prunelloes), plums not otherwise described, prunes and raisins.	3s. 6d. per cwt.	—	
Other fruits (except stoned cherries) preserved in syrup.	15 per cent. -	—	
Honey - - - -	7s. per cwt. -		

PART II.

DUTIES PAYABLE AS FROM THE TWENTY-SEVENTH DAY OF
JANUARY, NINETEEN HUNDRED AND THIRTY-THREE.

Class or Description of Goods.	Rate of Duty.
Rice, husked, including cargo rice and cleaned rice whole, but not including broken rice -	1d. per lb.
Linseed - - - -	10 per cent.
Castor oil - - - -	15 per cent.
Linseed oil - - - -	
Coconut oil - - - -	
Ground-nut oil - - - -	
Rape oil - - - -	
Sesamum oil - - - -	1s. per cwt
Magnesium chloride - - - -	

3RD SCH.
—cont.

PART III.

DUTIES PAYABLE AS FROM THE TWELFTH DAY OF JULY,
NINETEEN HUNDRED AND THIRTY-THREE.

Class or Description of Goods.	Rate of Duty.
Cod liver oil - - - - -	1s. 4d. per gallon
Chilled or frozen salmon - - - - -	1½d. per lb.

PART IV.

DUTY PAYABLE AS FROM DATE TO BE FIXED BY ORDER.

Class or Description of Goods.	Rate of Duty.
Copper, unwrought, whether refined or not, in ingots, bars, blocks, slabs, cakes or rods -	2d. per lb.

PART V.

MISCELLANEOUS PROVISIONS AS TO DUTIES.

1. The duties mentioned in Part I of this Schedule shall be payable as from the twenty-third day of November, nineteen hundred and thirty-two :

Provided that in the case of goods of a class or description in relation to which a period is specified in the third column of that Part of that Schedule, the respective duties shall be payable as from the date of the commencement of that period next following the said twenty-third day of November, and shall, instead of being charged continuously, be charged only from time to time for the period so specified.

Any period so specified shall be deemed to include both dates by reference to which it is defined.

2. The duties mentioned in Part II of this Schedule shall be payable as from the twenty-seventh day of January, nineteen hundred and thirty-three.

3. The duties mentioned in Part III of this Schedule shall be payable as from the twelfth day of July, nineteen hundred and thirty-three.

4. The duty mentioned in Part IV of this Schedule shall be payable as from such date as the Governor may by order appoint :

Provided that the date appointed by the Governor under this paragraph shall not be earlier than the date on which the corresponding duty chargeable under section one of the Ottawa Agreements Act, 1932, becomes chargeable in the United Kingdom by virtue of an order made by the Treasury under section fourteen of that Act.

5. References in the second column of Parts I and II of this Schedule to a rate of duty of ten per cent. or a rate of duty of fifteen per cent. shall be construed as references to a rate of duty of ten or fifteen per cent., as the case may be, of the value of the goods.

3RD SCH.
—cont.

6. For the purpose of Part I of this Schedule, the expression "great hundred" means one hundred and twenty.

7. Where apples removed or imported into the Isle of Man are consigned direct to a registered cider factory, the Commissioners may, subject to such conditions as they may impose for securing that the apples are used for the making of cider in that factory, allow the apples to be imported free of the duty mentioned in Part I of this Schedule.

The Commissioners, if it is shown to their satisfaction that any premises in the Isle of Man are occupied and used for the purpose of making cider shall, on an application made to them in that behalf and on payment by the applicant of a fee of one pound, register those premises for the purpose of this paragraph as a cider factory, and the expression "registered cider factory" in this paragraph means premises so registered.

8. The provisions of sections six, seven and eight of the first Act of 1932 shall have effect in relation to goods chargeable with duty under this section as they have effect in relation to goods chargeable with the general ad valorem duty.

FOURTH SCHEDULE.

SUPPLEMENTARY PROVISIONS AS TO IMPERIAL PREFERENCE.

Section 10.

1. For the purpose of any provision of Part I of the first Act of 1932 or of Part I of the second Act of 1932 or of this Act, which provides for the exemption of goods manufactured in a country or territory in the British Empire from any duty chargeable under Part I of the first Act of 1932 or under Part I of the second Act of 1932 or under section nine of this Act, or for the charge of any such duty in the case of such goods at a rate less than the full rate, goods shall not be deemed to have been manufactured in any such country or territory unless such proportion of their value as is prescribed by regulations made by the Governor is derived from expenditure of a kind so prescribed which has been incurred within that country or territory in respect of materials grown or produced or work done in that country or territory :

4TH SCH.
—cont.

Provided that in reckoning the proportion aforesaid, there shall be included any expenditure of a kind prescribed as aforesaid which has been incurred within any of the countries and territories to which this proviso applies, being expenditure in respect of materials grown or produced or work done in any of those countries and territories.

2. The countries and territories to which the proviso to the last foregoing paragraph applies are—

- (a) the United Kingdom;
- (b) any country the Government of which is a party to one of the agreements set out in the First Schedule to the Ottawa Agreements Act, 1932, for the time being in force;
- (c) any territory in respect of which a mandate of the League of Nations is being exercised by, or which is administered under the authority of, the Government of a country specified in sub-paragraph (b) of this paragraph;
- (d) any part of His Majesty's dominions outside the United Kingdom other than a Dominion within the meaning of the Statute of Westminster, 1931, India or Southern Rhodesia;
- (e) any territory which is under His Majesty's protection;
- (f) any territory in relation to which an order made under subsection (2) of section three of the first Act of 1932 is in force.

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Geo. 5. c. 4.

3. For the purpose of this Schedule, the value of any goods shall, notwithstanding anything in any other enactment, be taken to be their value as ascertained in accordance with regulations made by the Governor under this Schedule.

4. It shall be lawful for the Commissioners on the removal or importation into the Isle of Man of any goods consigned from any part of the British Empire which, if grown, produced or manufactured in any particular country or territory therein would, under any provision of Part I of the first Act of 1932 or of Part I of the second Act of 1932 or of this Act, be exempt from a duty chargeable under Part I of the first Act of 1932 or under Part I of the second Act of 1932 or under section nine of this Act, or be chargeable with such a duty at a rate less than the full rate, to require the person removing or importing the goods to furnish to the Commissioners, in such form as they may prescribe, proof that the goods were grown, produced or manufactured in that country or territory, and if such proof is not furnished to their satisfaction (having regard, in the case of manufactured goods, to the foregoing provisions of this Schedule) the goods shall be deemed not to be goods so grown, produced or manufactured.

FIFTH SCHEDULE.

DUTIES ON CERTAIN IRISH FREE STATE GOODS.

Section 19.

PART I.

CLASS OR DESCRIPTION OF GOODS CHARGEABLE, AND RATE
AND PERIOD OF DUTY.

Class or description of Goods.	Rate of duty.	Period for which duty chargeable.
Live animals for food - -	40 per cent.	8th November, 1932, to 8th June, 1933.
Animals not for food - -	40 per cent.	
Live cattle :—		9th June, 1933, to 31st December, 1933.
(i) under 6 months old -	1l. 5s. 0d. per head	
(ii) 6 months old but under 15 months old -	2l. 10s. 0d. per head	
(iii) 15 months old but under 2 years old - -	4l. 0s. 0d. per head	
(iv) 2 years old and upwards not being cattle known as mincers -	6l. 0s. 0d. per head	
(v) 2 years old and upwards being cattle known as mincers - -	3l. 0s. 0d. per head	
Live sheep and live lambs -	12s. per head	8th November, 1932, to 31st December, 1933.
Other animals - - - -	40 per cent.	
Pork - - - - -	30 per cent.	
Poultry and game - - -	30 per cent.	
Other meat of all kinds (other than bacon and ham) -	30 per cent.	

PART II.

MISCELLANEOUS PROVISIONS AS TO DUTIES.

1. Any duty chargeable under this Schedule on any article shall be chargeable in addition to any other duty of customs for the time being chargeable thereon, whether under Part I of the first Act of 1932 or under Part I of the second Act of 1932 or otherwise, and articles chargeable with duty under this Schedule shall not, for the purpose of Part I of the last-mentioned Act, be deemed to be chargeable with a duty of customs by or under the provisions of any enactment relating to customs in the Isle of Man other than that Part of that Act.

5TH SCH.
—cont.

2. Sections seven and eight of the first Act of 1932 (which relate respectively to the determination for the purpose of Part I of that Act of the value of goods and to disputes as to the value of goods) shall apply for the purpose of the charge of duties under this Schedule as they apply for the purpose of the charge of duties under Part I of that Act.

3. References in this Schedule to a rate of duty of thirty per cent. or to a rate of duty of forty per cent. shall be construed as references to a rate of duty of thirty or forty per cent., as the case may be, of the value of the goods.

4. In any case where a duty chargeable on cattle, sheep or lambs under this Schedule would exceed the value thereof, this Schedule shall have effect as if there were substituted for that duty a duty of one hundred per cent. of the value thereof.

5. For the purpose of this Schedule, the expression "cattle" means bulls, cows, oxen, heifers and calves.

6. Any period specified in the third column of Part I of this Schedule shall be deemed to include both dates by reference to which it is defined.

SIXTH SCHEDULE.

Section 21.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
58 & 59 Vict. c. 38.	Isle of Man (Customs) Act, 1895.	The whole Act.
15 & 16 Geo. 5. c. 56.	Isle of Man (Customs) Act, 1925.	Section ten.
16 & 17 Geo. 5. c. 27.	Isle of Man (Customs) Act, 1926.	Subsection (5) of section thirteen.
17 & 18 Geo. 5. c. 20.	Isle of Man (Customs) Act, 1927.	Section seven and the Third Schedule.
18 & 19 Geo. 5. c. 38.	Isle of Man (Customs) Act, 1928.	Section eight.
22 & 23 Geo. 5. c. 16.	Isle of Man (Customs) Act, 1932.	Subsection (4) of section two; sections four and nine; Part II; and the Second Schedule.
22 & 23 Geo. 5. c. 41.	Isle of Man (Customs) (No. 2) Act, 1932.	Sections three and twelve.